

DAVID MODIKWE

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□ DRAFT — FOR REVIEW ONLY □

VIA EMAIL & REGISTERED POST

[INSERT DATE]

TO

Mr Dandy Matamala

Group Chairman

The Joseph Company / Muma Investments (Pty) Ltd

Email: dandy@muma.co.za

Mobile: 072 144 6185

RE: CONFIRMATION OF INVESTMENT AND REQUEST TO PROTECT INVESTOR INTERESTS SECTION 12J QUALIFYING INVESTMENT — DAVID MODIKWE

Dear Mr Matamala,

1. Introduction

1.1 I write to you further to our previous telephonic conversation in which you confirmed receipt of investment funds channelled through **Impact Empowerment Ventures (Pty) Ltd** ("IEV"), an approved Venture Capital Company under **Section 12J of the Income Tax Act**.

1.2 As you are aware, IEV is now in **formal liquidation**, with **Marumo Trustees** appointed as the court liquidator. This letter is intended to formally place on record the details of my investment and to request your cooperation in protecting my interests as the **ultimate beneficial investor** of the funds.

2. Investment Details

2.1 I invested a total of **R2,100,000.00** through IEV over the 2020–2021 period, which was in turn invested by IEV into **The Joseph Company / Muma Investments** for **Class D Student Accommodation**.

2.2 My specific investment references are:

INVESTOR NUMBER	SHARE CERTIFICATE	YEAR
S12J IIM 2019/147	D4	2020
S12J IEV 2020/191	D34	2020/2021
S12J IEV 2022/158	D86	2021

2.3 The qualifying shares corresponding to my investment were issued by The Joseph Company / Muma Investments **to IEV** (the VCC), not directly to me as the investor.

3. Requests

In light of IEV's liquidation and the fact that my invested capital is at risk, I respectfully request the following:

A. CONFIRMATION OF INVESTMENT

1. Written confirmation that The Joseph Company / Muma Investments **received investment funds** corresponding to my investor references listed above;
2. Confirmation of the **quantum of funds received** from IEV on my behalf;
3. Confirmation of the **number and class of qualifying shares** issued to IEV corresponding to my investment;
4. The **current valuation** of those qualifying shares.

B. PERFORMANCE INFORMATION

5. A **performance report** on the Class D Student Accommodation investment into which my funds were deployed;
6. Details of any **income, dividends, or distributions** generated by the investment;
7. Confirmation of whether any payments or distributions were made **to IEV** in respect of these investments.

C. PROTECTION OF INVESTOR INTERESTS

8. Confirmation of whether The Joseph Company / Muma Investments has been **contacted by the liquidator** (Marumo Trustees) regarding the qualifying shares;
9. An undertaking that no qualifying shares or assets corresponding to my investment will be **transferred, encumbered, or disposed of** without due process and regard for the rights of the underlying investors;

10. Confirmation of whether it is possible, in the circumstances, for the qualifying shares corresponding to my investment to be **re-issued or transferred directly to me** as the beneficial investor, subject to the necessary legal processes.

4. Legal Context

4.1 While the qualifying shares are registered in IEV’s name, the economic substance is that **the investment funds originated from me** as an individual investor. IEV acted as an intermediary/conduit in its capacity as a Section 12J VCC.

4.2 I will be lodging a formal claim with the liquidator and have also referred this matter to the **Financial Sector Conduct Authority (FSCA)** for investigation.

4.3 I trust that The Joseph Company / Muma Investments will cooperate fully with all parties to ensure that the rights of the underlying investors are protected and that the investment assets are **not dissipated or claimed by parties who did not provide the underlying capital**.

5. Contact Details

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6. Conclusion

- 6.1** I would appreciate a written response within **14 (fourteen) days** of receipt of this letter.
- 6.2** I trust that, given your previous confirmation of receipt of the investment funds, you will assist in ensuring transparency and the protection of investor interests during this process.
- 6.3** I reserve all my rights in this matter.

Yours faithfully,

David Modikwe

Date

Sent via email to: dandy@muma.co.za • Copy retained for records